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Case Number: 26STCV07052 Hearing Date: September 2, 2026 Dept: 407

Tentative

Ruling

Judge

Brock T. Hammond, Department 407

HEARING DATE: September 2, 2026 TRIAL

DATE: Not set

CASE: Zaleka Turner v. Amazon.com Services LLC

CASE NO.: 26STCV07052

DEFENDANT AMAZON.COM SERVICES LLC’S DEMURRER

TO COMPLAINT

DEFENDANT

AMAZON.COM SERVICES LLC’S MOTION TO STRIKE PORTIONS OF PLAINTIFF ZALEKA TURNER’S

COMPLAINT

MOVING PARTY: Defendant

Amazon.com Services LLC

RESPONDING

PARTY: Plaintiff Zaleka Turner

I. BACKGROUND

Plaintiff Zaleka Turner ("Plaintiff" or "Turner") brings this action against defendant Amazon.com Services LLC ("Defendant" or "Amazon") arising from Turner's employment as an Area Manager from April 2021 to March 2022.

Prior Litigation

On November 15, 2023, Turner filed a putative wage and hour class action against Amazon in Los Angeles County Superior Court, Case No. 23STCV28084 (hereafter, "Turner I").

On January 5, 2024, Amazon removed Turner I to United States District court for the Central District of California, Case No. 2:24-cv-00132-TJH-SP.

On February 23, 2024, Plaintiff filed her operative first amended complaint in Turner I, asserting causes of action for (1) Overtime (Cal. Lab. Code §§ 1194, 1198, 510, 554); (2) Wages Due Upon Termination (Cal. Lab. Code §§ 201-203); (3) Timely Payment of Wages (Cal. Lab. Code § 204); (4) Misclassification of Exempt Employee Status (Cal. Lab. Code § 515); (5) Meal and Rest Breaks (Cal. Lab. Code §§ 226.7, 512); (6) Itemized Wage Statements (Cal. Lab. Code §§ 226, 226.3, 1174.5); and (7) Unfair Competition Law (Cal. Bus. & Prof. Code §§ 17200, et seq.).

On March 8, 2024, Amazon moved to dismiss Plaintiff's first amended complaint in Turner I.

On August 1, 2024, the court granted Amazon's motion to dismiss without prejudice for failure to state a claim. On the next day, the case was ordered closed.

On October 15, 2025, Turner filed a motion for leave to file a second amended complaint.

On January 20, 2026, the federal district court denied Turner's motion.

This Action

On February 27, 2026,
Turner filed this action against Defendant, asserting causes of action for (1) Failure to Pay Overtime (Lab. Code §§ 1194, 1198, 510, 554); (2) Unpaid Meal and Rest Breaks (Lab. Code §§ 226.7, 512); (3) Failure to Provide Accurate Itemized Wage Statements (Labor Code §§ 226, 226.3, 1174.5); and (4) Unfair Competition (Bus. & Prof. Code §§17200).

On June 18, 2026, Amazon
filed a demurrer and motion to strike portions of Plaintiff's Complaint.

On August 20, 2026,
Plaintiff filed oppositions.

On August 26, 2026, Amazon
filed replies.

The court first addresses
the demurrer.

II. DISCUSSION
RE DEMURRER

A. Judicial Notice

Amazon
requests judicial notice of eleven court documents filed in Turner I. The request is GRANTED.

Plaintiff requests judicial notice
of five court documents filed in the putative class action Gallardo v. Amazon.com Services, LLC, et al. (S.D. Cal.) No. 3:22-cv-00297-LAB-AHG (hereafter, the "Gallardo Class Action") and one court document filed in Turner I. The request is GRANTED.

B.
Legal Standard

A demurrer for sufficiency
tests whether the complaint states a cause of action.¿ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)¿ When considering demurrers, courts read the

allegations liberally and in context, accepting the alleged facts as true.¿ (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)¿ “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.”¿ (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

C.
Application

Defendant demurs to the first, second, and third causes of action (the “Labor Code Claims”) on two grounds: (1) the Labor Code Claims are time-barred; (2) res judicata bars the Labor Code Claims. For the reasons stated herein, the court finds these arguments are meritorious.

1. The Labor Code
Claims are Time Barred.

There is no dispute that a three-year statute of limitations generally applies to claims for wages such as unpaid overtime and meal and rest period claims. (See Murphy v. Kenneth Cole Prods., Inc. (2007) 40 Cal.4th 1094, 1102, 1120.) Such claims accrue on the employee’s last date of employment, at the latest. (See Pineda v. Bank of America, N.A. (2010) 50 Cal.4th 1389, 1399, fn.7.) A claim for inaccurate wage statements under Labor Code section 226 can be subject to either a one or three-year statute of limitations. (See Lab. Code § 226(e)(1) [providing for the recovery of damages and penalties]; Code Civ. Proc., § 340(a) [one-year statute of limitations for action for a “penalty or forfeiture”]; Code Civ. Proc., § 338(a) [three-year statute for action based “upon a liability created by statute, other than a penalty or forfeiture]; see also Novoa v. Charter Comms., LLC (E.D. Cal. 2015) 100 F.Supp.3d 1013, 1025 [“Therefore, depending on the relief sought, a claim pursuant to [Labor Code] Section 226(e)(1) could be subject to a one-year or a three-year limitations period.”].)

Here, Turner’s employment with Amazon ended no later than March 31, 2022. (See Complaint, ¶ 5.) Although Turner I was timely filed on November 15, 2023 (see Defendant’s Request for Judicial Notice (RJN), Ex. 2), after the federal district court closed Turner I (Defendant’s RJN, Ex. 8), Turner I was never reopened (Defendant’s RJN, Ex. 11). Accounting for the period during which the federal district court dismissed without prejudice Turner I and the closure of that case, Turner did not timely file the instant action. On its face, the Labor Code Claims are time-barred.

Plaintiff argues her claims are timely under two tolling theories: class action tolling as established in American Pipe & Const. Co. v. Utah (1974) 414 U.S. 538 (American Pipe) and equitable tolling under California law. Plaintiff's reliance on these tolling theories is misplaced.

First, under American Pipe, commencement of a class action tolls the running of the statute of limitations for all putative class members who subsequently seek to intervene or file suit. The California Supreme Court has endorsed this rule. (See Jolly v. Eli Lilly & Co. (1988) 44 Cal. 3d 1103, 1121(quoting American Pipe, 414 U.S. at pp. 554-555.) There is, however, a limitation to the American Pipe rule. In Fierro v. Landry's Restaurant, Inc. (2019) 32 Cal.App.5th 276, 296, the Court of Appeal held that tolling does not apply to any later class claims that may be asserted by the purported class member who files a new action, but rather applies only to individual claims. As such, American Pipe tolling is inapplicable where the former absent class member opts to pursue a subsequent class action instead of individual relief. This limitation applies here. After the Gallardo Class Action, Plaintiff filed a class action in Turner I. Accordingly, Plaintiff cannot rely on class action tolling here.

Second, the Complaint does not allege any facts to properly invoke equitable tolling. The doctrine of equitable tolling serves to relieve a plaintiff "from the bar of a limitations statute when, possessing several legal remedies he, reasonably and in good faith, pursues one designed to lessen the extent of his injuries or damage." (Addison v. State of California (1978) 21 Cal.3d 313, 317.) "[A]pplication of the doctrine of equitable tolling requires [1] timely notice, and [2] lack of prejudice, to the defendant, and [3] reasonable and good faith conduct on the part of the plaintiff." (Addison, supra, at p. 319.) "Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling." (Long v. Forty-Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.)

Here, Plaintiff runs through several the facts which purportedly support equitable tolling but none of those facts are alleged in the Complaint. (Compare Opp., p. 8:1-22 with Complaint, generally.) Equitable tolling is therefore unavailable to Plaintiff.

2. Res Judicata Bars This Action.

Even if equitable tolling applies, the action is barred by the dismissal in the Turner I.

“Res judicata describes the preclusive effect of a final judgment on the merits. Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.¿ A predictable doctrine of res judicata benefits both the parties and the courts because it seeks to curtail multiple litigation causing vexation and expense to the parties and wasted effort and expense in judicial administration.” (Consumer Advocacy Group, Inc. v. ExxonMobil Corp.¿(2008) 168 Cal.App.4th 675, 683 (cleaned up).)

¿¿

“A prior judgment is not¿res¿judicata¿on a subsequent action unless three¿elements¿are satisfied:¿‘(1) the issues decided in the prior adjudication are identical with those presented in the later action; (2) there was a final judgment on the merits in the prior action; and (3) the party against whom the plea is raised was a party or¿in privity with a party to the prior adjudication. [Citation.]”¿ (Id. at pp. 685-86.)¿ “Federal common law governs the preclusive effect of all federal judgments.” (Doe v. Marysville Joint Unified School District (2026) 20 Cal.5th 68, 77; see also Nathanson v. Hecker (2002) 99 Cal.App.4th 1158, 1163 [the federal rule “is that a judgment or order, once rendered, is final for purposes of res judicata until reversed on appeal or modified or set aside in the court of rendition.”].)

Here, there is no dispute over the first and third elements. As in Turner I, Plaintiff brings the same claims in this case against the same defendant. Element two is more complicated. Plaintiff argues Turner I was not a final judgment on the merits in the prior action because the federal court dismissed the first amended complaint without prejudice. However, Plaintiff does not address that, after the dismissal without prejudice for failure to state a claim, Plaintiff did not file an amended pleading and the case was closed. Dismissal for failure to state a claim is a judgment on the merits for purposes of claim preclusion. (Stewart v. U.S. Bancorp (9th Cir. 2002) 297 F.3d 953, 957.) Where the case is closed pursuant to judicial directive, the dismissal order becomes a final judgment. (See Unified Data Servs., LLC v. Fed. Trade Comm'n (9th Cir. 2022) 39 F.4th 1200, 1207.) "[W]hen a suit is abandoned after an adverse ruling against the plaintiff, the judgment ending the suit, whether or not it is with prejudice, will generally bar bringing a new suit that arises from the same facts as the old one." (Muhammad v. Oliver (7th Cir. 2008) 547 F.3d 874, 876.) Because the court in Turner I dismissed the first amended complaint for failure to state a claim,[1] and the case was thereafter closed, that order became a judgment on the merits. Plaintiff's present action is barred by res judicata.

D. Conclusion

Based on the foregoing, the demurrer is SUSTAINED. Leave to amend is DENIED.

III. DISCUSSION RE MOTION TO STRIKE

A. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)¿¿¿¿

B. Application

Amazon moves to strike allegations of injunctive relief and attorney's fees in connection to the fourth cause of action under the Unfair

Competition Law (UCL) and as stated in the prayer for relief.¿

After reviewing the parties' briefing and the allegations in the Complaint, the court finds the motion to strike is meritorious.

First, it is well-settled that attorney's fees are not recoverable under the UCL. (See Zhang v. Superior Court (2013) 57 Cal.4th 364, 371 ["Plaintiffs may not receive . . . attorney fees."]; see also Rose v. Bank of America (2013) 57 Cal.4th 390, 399 ["the UCL does not authorize attorney fees."]; People ex rel. City of Santa Monica v. Gabriel (2010) 186 Cal.App.4th 882, 889 ["Attorneys fees are not recoverable under the UCL."].) Nor is Plaintiff's UCL claim predicated on a contractual provision or violation of any statute (i.e., the Private Attorneys General Act)[2] which would authorize the recovery of attorney's fees. Accordingly, the reference to attorney's fees in the Complaint is improper.

Second, the Complaint is bereft of allegations supporting injunctive relief. Rather, the Complaint alleges conduct which has already occurred. "Injunctive relief is available to prevent future harm, not to address past harm." (Haley v. Casa Del Ray Homeowners Assn. (2007) 153 Cal.App.4th 863, 873.) As such, there is no alleged ongoing conduct which may be enjoined.

C.
Conclusion

Based on the foregoing, the motion to strike is GRANTED. Leave to amend is DENIED.

IV. DISPOSITIONS

The demurrer is Sustained. Leave to amend is Denied.

The motion to strike is Granted. Leave to amend is Denied.

Defendant is ordered to

serve and file their Answer to the Complaint within 5 court days of this order.

Defendant to give notice,
unless waived.

Dated: September 2, 2026

Brock T. Hammond

Judge of the
Superior Court

[1] At least with respect to the Labor Code Claims.

[2]
The absence of any allegations showing that Plaintiff is proceeding as a private attorney general also undermines Plaintiff's contention that she can recover attorney's fees under Code of Civil Procedure section 1021.5 as alleged in paragraph 25 of the Complaint. "Section 1021.5 codifies California's version of the private attorney general doctrine, which is an exception to the usual rule that each party bears its own attorney fees." (Vosburg v. Cnty. of Fresno (2020) 54 Cal. App. 5th 439, 449.)